



CHAPTER xvii.

An Act to confirm certain Provisional Orders of the Minister of Health relating to the City of Hereford and the West Kent Main Sewerage District. A.D. 1933.
[28th June 1933.]

WHEREAS under the provisions of the Public Health Act 1875 the Minister of Health has made certain provisional orders which need confirmation by Parliament: 38 & 39 Vict. c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The orders of the Minister of Health which are set out in the schedule to this Act are hereby confirmed and shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (Hereford and West Kent Main Sewerage District) Act 1933. Short title.

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*Provisional Orders Confirmation (Hereford and West
Kent Main Sewerage District) Act, 1933.*

A.D. 1933.

SCHEDULE.

*Hereford
Order.*

CITY OF HEREFORD.

*Provisional Order altering the Hereford Improvement
Act 1854.*

WHEREAS the mayor aldermen and citizens of the city of Hereford acting by the council (in this order called "the corporation") are the local authority for the purposes of the Public Health Act 1875 and there are in force in the city the unrepealed provisions of the Hereford Improvement Act 1854 (in this order called "the Act of 1854") as amended by certain local Acts and provisional orders confirmed by Parliament;

And whereas by sections 35 and 42 of the Act of 1854 the corporation are authorised to provide slaughter-houses and to demand and take tolls from persons using the same;

And whereas the corporation have made application to the Minister of Health for the issue of a provisional order partially to repeal and alter the Act of 1854 in manner hereinafter appearing :

Now therefore the Minister of Health in pursuance of the powers given to him by section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows :—

Short title
and com-
mencement.

1. This order may be cited as the Hereford Order 1933 and shall come into operation on the date of the Act of Parliament confirming it.

Public
Health Act
to apply to
slaughter-
houses.

2. Subject to the provisions of this order any slaughter-house provided by the corporation under section 35 of the Act of 1854 shall be deemed to have been provided under the Public Health Act 1875 and the provisions of that Act and the enactments incorporated therewith with respect to slaughter-houses provided by an urban authority shall extend and apply to any slaughter-house provided by the corporation.

Receipts and
liabilities of
slaughter-
house under-
taking.

3. As from the first day of April nineteen hundred and thirty-three all money received by the corporation in respect of their slaughter-house undertaking shall be carried to the general rate fund of the city of Hereford and all liabilities falling to be discharged by the corporation in respect of that undertaking

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shall be discharged out of the general rate fund of the city of Hereford. A.D. 1933.

4. Notwithstanding the foregoing provisions of this order section 19 of the Markets and Fairs Clauses Act 1847 as incorporated with the Hereford Improvement Act 1854 by section 28 of that Act shall continue to apply to the city of Hereford and in the construction of the said section 19 the city of Hereford shall be deemed to be the limits of the special Act.

Hereford
Order.

Application
to city of
10 & 11 Vict.
c. 14. s. 19.

5. As from the date upon which byelaws made by the corporation under section 169 of the Public Health Act 1875 with respect to charges for the use of slaughter-houses provided by the corporation come into force the following provisions of the Act of 1854 shall be repealed :—

Partial
repeal of
local Act.

- (i) In section 35 the words “ and such Slaughter-houses shall be deemed Part of the Market Places ”;
- (ii) The whole of section 42 and schedule (G).

WEST KENT MAIN SEWERAGE DISTRICT.

*Provisional Order for altering certain local Acts and
Confirming Acts.*

West Kent
Main
Sewerage
Order.

WHEREAS the West Kent main sewerage district and the West Kent Main Sewerage Board were constituted by the West Kent Main Sewerage Act 1875 and the board were authorised by the local Acts confirmation Acts and orders mentioned in the schedule to this order to construct and maintain certain sewers and works for the purpose of the carrying away and disposal of sewage from the districts of the several districts comprised within the main sewerage district;

And whereas by an agreement dated the twenty-ninth day of July one thousand nine hundred and thirty-two made under sections 48 and 53 of the local Act of 1875 between the board and the Erith urban district council provision was made for the carrying away and disposal by the sewers and works of the board of the sewage from the area forming the urban district of Erith;

And whereas it is expedient that the council of the urban district of Erith should be a constituent authority of the board and that the West Kent main sewerage district should be extended so as to include the area of the said district and that for those purposes the said local Acts and orders should be amended;

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Main
Sewerage
Order.*

And whereas by article VI of the West Kent Main Sewerage Order 1886 it is provided that for the purposes of section 303 of the Public Health Act 1875 the board shall be deemed to be a local authority and the sewerage district to be the district of a local authority within the meaning of that Act :

Now therefore the Minister of Health in pursuance of the powers given to him by sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows :—

Commence-
ment and
short title.

1.—(1) This order may be cited as the West Kent Main Sewerage Order 1933 and the West Kent Main Sewerage Orders 1886 to 1930 and this order may be cited together as the West Kent Main Sewerage Orders 1886 to 1933.

(2) This order shall come into operation on the date of the Act of Parliament confirming it.

Interpreta-
tion.

2. In this order—

“ the appointed day ” means the first day of August nineteen hundred and thirty-three ;

“ the board ” means the West Kent Main Sewerage Board ;

“ the council ” means the council of the urban district of Erith ;

“ the urban district ” means the urban district of Erith ;

“ the local Acts and orders ” means the local Acts confirmation Acts and orders mentioned in the schedule to this order ;

“ the local Act of 1875 ” means the West Kent Main Sewerage Act 1875.

Erith urban
district
council to
be a consti-
tuent
authority.

3. As from the appointed day the council shall be a constituent authority of the board and the urban district shall form part of the West Kent main sewerage district and the expressions “ constituent authority ” and “ constituent authorities ” in the local Acts and orders shall be deemed to include the council.

Election of
additional
members of
board.

4.—(1) The council shall be represented upon the board by two members to be chosen by the council from among their members.

(2) The first election of the members of the board to represent the council shall take place at a meeting of the council to be held within one month after the date of the confirmation of this order or within such further time as the Minister of Health may allow and not less than three days previous notice in writing of any such meeting shall be given or sent to each member of the council by the clerk.

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(3) The additional members of the board elected at the first election shall come into office upon the appointed day and subject to the provisions of the local Acts and orders shall hold office until their successors are elected by the council at the first meeting of the council held after the fifteenth day of April nineteen hundred and thirty-four.

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—
*West Kent
Main
Sewerage
Order.*

(4) The clerk to the council shall forthwith notify in writing to the secretary of the board the name address and occupation of each person elected by the council under this section.

5. For the purpose of contributions to the board in pursuance of the local Acts and orders the council shall be deemed to have been a constituent authority from the appointed day.

Contri-
butions.

6. On and from the appointed day clauses 1 3 5 6 and 7 of the above-recited agreement dated the twenty-ninth day of July one thousand nine hundred and thirty-two shall cease to have effect :

Cancellation
in part of
agreement.

Provided that nothing in this order shall affect the recovery by the board of any sum due under clause 5 of the agreement in respect of any period before the appointed day.

SCHEDULE.

LOCAL ACTS CONFIRMATION ACTS AND ORDERS RELATING TO THE BOARD.

PART I.—LOCAL ACTS.

Session and Chapter.	Short Title.
38 & 39 Vict. c. clxiii.	The West Kent Main Sewerage Act 1875.
39 & 40 Vict. c. lvii. -	The West Kent Main Sewerage (Amendment) Act 1876.
40 & 41 Vict. c. lxxviii.	The West Kent Main Sewerage (Amendment) Act 1877.
42 & 43 Vict. c. lxxviii.	The West Kent Main Sewerage (Amendment) Act 1879.

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A.D. 1933.

PART II.—CONFIRMATION ACTS AND PROVISIONAL ORDERS.

*West Kent
Main
Sewerage
Order.*

Confirmation Act.		Order thereby confirmed relating to the Board.
Session and Chapter.	Short Title.	
50 Vict. c. xv -	The Local Government Board's Provisional Orders Confirmation (No. 7) Act 1886.	The West Kent Main Sewerage Order 1886.
50 & 51 Vict. c. clxxix.	The Local Government Board's Provisional Orders Confirmation (No. 5) Act 1887.	The West Kent Main Sewerage Order 1887.
57 & 58 Vict. c. cxxxi.	The Local Government Board's Provisional Orders Confirmation (No. 18) Act 1894.	The West Kent Main Sewerage Order 1894.
5 & 6 Geo. 5. c. xciii.	The Local Government Board's Provisional Orders Confirmation (No. 8) Act 1915.	The West Kent Main Sewerage Order 1915.
16 & 17 Geo. 5. c. xix.	The Ministry of Health Provisional Orders Confirmation (No. 1) Act 1926.	The West Kent Main Sewerage Order 1926.
20 & 21 Geo. 5. c. xci.	The Ministry of Health Provisional Orders Confirmation (Guildford and West Kent Main Sewerage District) Act 1930.	The West Kent Main Sewerage Order 1930.

PART III.—ORDERS OF THE LOCAL GOVERNMENT BOARD MADE IN
PURSUANCE OF SECTION 94 OF THE WEST KENT MAIN
SEWERAGE ACT 1875.

Order dated the 20th day of March 1878.

Order dated the 30th day of January 1901.

Order dated the 5th day of June 1903.

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